

SHIONOGI INC. v. SANDOZ INC.

Plaintiff:	SHIONOGI INC.
Defendant:	SANDOZ INC.
Case Number:	2:2026cv07063
Filed:	June 12, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Jennifer Choe-Groves (CIT)
Referring Judge:	Leda D Wettre
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Date Filed	Document Text
July 8, 2026	Filing 6 NOTICE of Appearance by STEPHEN R. DONAT on behalf of SHIONOGI INC. (DONAT, STEPHEN)
June 24, 2026	Filing 5 Letter from William P. Deni, Jr. to the Honorable Leda Dunn Wettre, U.S.M.J. re: status report. (DENI, WILLIAM)
June 15, 2026	Filing 4 SUMMONS ISSUED as to SANDOZ INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (mj)
June 15, 2026	Filing 3 AO120 Patent Form filed. (Attachments: #1 See attached Complaint and Exhibits) (mj)
June 15, 2026	Case assigned to Judge Jennifer Choe-Groves (CIT) and Magistrate Judge Leda D. Wettre. (tjg,)

Date Filed	Document Text
June 12, 2026	Filing 2 Corporate Disclosure Statement by SHIONOGI INC. identifying Shionogi & Co., Ltd. as Corporate Parent.. (DENI, WILLIAM)
June 12, 2026	Filing 1 COMPLAINT against SHIONOGI INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17536572) , Related Case Selected, filed by SHIONOGI INC.. (Attachments: #1 Exhibit Exhibit A, #2 Exhibit Exhibit B, #3 Exhibit Exhibit C, #4 Certification Certification Pursuant to L. Civ. R. 11.2 and 40.1, #5 Civil Cover Sheet) (DENI, WILLIAM)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Shionogi Inc. (Delaware)
Defendant:	Sandoz Inc. (Delaware)
Plaintiff's Counsel:	FBT Gibbons LLP
Case Identification:	2:26-cv-07063 , D.N.J., 06/12/2026
Venue Allegations:	Plaintiff Shionogi Inc. alleges venue is proper in the District of New Jersey because Defendant Sandoz Inc. has a regular and established place of business in the state and has committed alleged acts of infringement in New Jersey.
Core Dispute:	Plaintiff alleges that Defendant's Abbreviated New Drug Application (ANDA) seeking approval for a generic version of the drug RADICAVA ORS® constitutes an act of infringement of three patents related to pharmaceutical compositions and administration methods for edaravone.
Technical Context:	The technology concerns oral formulations of the drug edaravone, used to treat Amyotrophic Lateral Sclerosis (ALS), a fatal neurodegenerative disease, in a manner that avoids the drug's absorption being negatively affected by food consumption.
Key Procedural History:	This action was triggered by Sandoz's submission of ANDA No. 220086 with a Paragraph IV certification, asserting that the patents-in-suit are invalid, unenforceable, or will not be infringed by its proposed generic product. The complaint notes that Shionogi recently acquired the RADICAVA ORS® assets from Tanabe Pharma Corporation and that numerous related infringement actions against other generic drug manufacturers are pending in the same district.

Case Timeline

Date	Event
2020-11-12	Earliest Priority Date for '611 , '769 , and '469 Patents
2022-05-12	FDA Approval of RADICAVA ORS® (NDA No. 215446)

Date	Event
2024-03-28	FDA Grants Orphan Drug Exclusivity for RADICAVA ORS®
2025-11-25	U.S. Patent No. 12,478,611 Issues
2025-12-22	Shionogi Announces Agreement to Acquire RADICAVA ORS® Business
2026-01-20	U.S. Patent No. 12,527,769 Issues
2026-03-10	U.S. Patent No. 12,569,469 Issues
2026-04-01	Shionogi Completes Acquisition of RADICAVA ORS® Assets
2026-04-30	Sandoz Sends Paragraph IV Notice Letter to Shionogi
2026-06-12	Complaint for Patent Infringement Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,478,611 - Pharmaceutical composition for oral administration of edaravone and method of administering same

The Invention Explained

❑ **Problem Addressed:** The patent discloses that edaravone, a treatment for the oxidative stress disease ALS, was previously only available as an injectable agent '611 Patent, col. 1:56-61 While an oral formulation offers convenience, its absorption and resulting pharmacokinetics (PK) can be negatively and unpredictably impacted by food consumption, potentially reducing efficacy '611 Patent, col. 15:1-16:38

❑ **The Patented Solution:** The invention claims a method for administering an oral liquid formulation of edaravone by specifying minimum time intervals between consumption of a meal and administration of the drug '611 Patent, abstract The length of the required time interval is tied to the type of meal consumed (e.g., 8 hours for a high-fat meal, 4 hours for a standard meal, 2 hours for a light meal), with the goal of achieving "the same pharmacokinetics" as if the drug were administered in a fasted state '611 Patent, col. 2:1-22

❑ **Technical Importance:** This dosing regimen allows ALS patients to benefit from a convenient oral formulation of edaravone without the burden of intravenous injections, while ensuring predictable and effective drug absorption that is not compromised by food intake Compl. ¶11
Compl. ¶12

Key Claims at a Glance

- ❑ The complaint asserts at least Independent Claim 1 of the '611 patent Compl. ¶40
- ❑ The essential elements of Independent Claim 1 are:
 - ❑ A method of treating amyotrophic lateral sclerosis.
 - ❑ The method comprises orally or intragastrically administering a liquid pharmaceutical composition containing edaravone.

- The administration occurs after a specific "first time interval" following a meal, where the interval is defined as 8 hours for a high-fat meal, 4 hours for a standard meal, or 2 hours for a light meal.
- This time interval achieves the "same pharmacokinetics" (including C_{max} and AUC) as administration under a fasting condition.
- The dose of edaravone administered is between 90 to 120 mg.
- The complaint alleges infringement of one or more claims, including at least Claim 1, suggesting dependent claims may be asserted later [Compl. ¶40](#) [Compl. ¶41](#)

U.S. Patent No. 12,527,769 - Pharmaceutical composition for oral administration of edaravone and method of administering same

The Invention Explained

- Problem Addressed:** As with the '611 patent, the '769 patent addresses the problem of food consumption altering the bioavailability of orally administered edaravone, making its therapeutic effect less predictable ['769 Patent, col. 15:58-16:2](#)
- The Patented Solution:** The '769 patent claims a method for administering a [suspension](#) of edaravone with specific timing relative to meals. It quantifies the desired PK outcome by requiring that any resulting decrease in maximum plasma concentration (C_{max}) be less than 20% and any decrease in the area under the curve (AUC) be less than 10% compared to administration in a fasted state ['769 Patent, claim 1](#)
- Technical Importance:** This method provides a more concrete, quantifiable standard for bioequivalence compared to the '611 patent, specifically defining the acceptable impact of food on the PK profile for an oral edaravone suspension, thereby ensuring therapeutic consistency.

Key Claims at a Glance

- The complaint asserts at least Independent Claim 1 of the '769 patent [Compl. ¶51](#)
- The essential elements of Independent Claim 1 are:
 - A method of treating amyotrophic lateral sclerosis.
 - The method comprises orally or intragastrically administering a liquid pharmaceutical composition that is a [suspension](#) containing edaravone.
 - The administration occurs after a specific "first time interval" following a meal (8 hours for high-fat, 4 hours for low-fat, 2 hours for caloric supplement).
 - This method results in a decrease in C_{max} of less than 20% and/or a decrease in AUC of less than 10%, relative to administration in a fasted state.
 - The complaint reserves the right to assert additional claims [Compl. ¶51](#)

U.S. Patent No. 12,569,469 - Pharmaceutical composition for oral administration of edaravone and method of administering same

Technology Synopsis

- This patent addresses the same problem of food-drug interaction with oral edaravone ['469 Patent, col. 15:55-16:2](#) The claimed method includes the pre-administration time intervals based on meal type, but adds a further limitation: a "second time interval" [after](#) drug administration,

during which the patient must wait before consuming the next meal, such as 1 hour or longer
'469 Patent, claim 1 '469 Patent, claim 3

Asserted Claims

☐At least Independent Claim 1 Compl. ¶62

Accused Features

☐The administration of Sandoz's proposed generic edaravone suspension is alleged to meet the claimed limitations, including the pre- and post-administration waiting periods Compl. ¶¶62-63

III. The Accused Instrumentality

Product Identification

The accused instrumentality is Defendant Sandoz's proposed generic edaravone oral suspension, which is the subject of ANDA No. 220086 Compl. ¶¶12 Compl. ¶35

Functionality and Market Context

☐The product is an oral suspension of edaravone formulated at a dose of 105 mg/5 mL Compl. ¶33 It is intended to be a generic equivalent to Plaintiff's RADICAVA ORS® product for the treatment of ALS Compl. ¶34 Compl. ¶35
☐The complaint alleges that RADICAVA ORS® is a major contribution to patient care because it provides a clinically superior oral administration option compared to the prior intravenous formulation, reducing the burden on patients Compl. ¶12 Sandoz's generic product would compete in this market Compl. ¶19 No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint alleges that Sandoz's submission of ANDA No. 220086 constitutes an act of infringement under 35 U.S.C. § 271(e)(2) Compl. ¶42 Compl. ¶53 Compl. ¶64 The infringement theory is centered on induced infringement, alleging that Sandoz's proposed product labeling will instruct physicians and patients to administer the drug in a manner that directly infringes the asserted method claims Compl. ¶41 Compl. ¶52 Compl. ¶63

U.S. Patent No. 12,478,611 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating amyotrophic lateral sclerosis, comprising: orally or intragastrically administering, to a subject in edaravone suspension for the need thereof, a liquid pharmaceutical	Plaintiff alleges Sandoz's proposed product is an oral edaravone suspension for the treatment of ALS, and that its	¶33; ¶35; ¶41	col. 11:11-15; col. 33:20-27

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
composition comprising edaravone	label will instruct administration.		
with a first time interval from a consumption of a meal...such that the first time interval achieves the same pharmacokinetics as administration...under a fasting condition...and that the same pharmacokinetics includes Cmax and AUC,	Plaintiff alleges Sandoz's proposed label instructs administration in accordance with the claimed methods, thereby achieving the claimed pharmacokinetic result.	¶41	col. 33:27-38
wherein the liquid pharmaceutical composition is administered...such that a dose of edaravone per administration is in a range of 90 to 120 mg,	Plaintiff alleges Sandoz's product is administered at a dose of 105 mg, which falls within the claimed range.	¶33	col. 33:39-42
the first time interval for the consumption of a high-fat meal...is 8 hours before the administration..., the first time interval for the consumption of a standard meal...is 4 hours before the administration..., and the first time interval for the consumption of a light meal...is 2 hours before the administration...	Plaintiff alleges Sandoz's proposed label will instruct users to follow the specific meal-based timing intervals claimed in the patent.	¶41	col. 33:43-51

U.S. Patent No. 12,527,769 Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating amyotrophic lateral sclerosis, comprising: orally or intragastrically administering, to a subject in need thereof, a liquid pharmaceutical composition...wherein the liquid pharmaceutical composition is a suspension comprising the	Plaintiff alleges Sandoz's product is a proposed oral edaravone suspension for treating ALS.	¶33; ¶35; ¶52	col. 5:1-3; col. 43:20-26

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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edaravone,

the first time interval for the consumption of a high-fat meal...is 8 hours before...; the first time interval for the consumption of a low-fat meal...is 4 hours before...; or the first time interval for the consumption of a caloric supplement...is 2 hours before...	Plaintiff alleges Sandoz's proposed label will instruct users to follow the specific meal-based timing intervals.	¶52	col. 44:49-45:4
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such that a decrease in Cmax is less than 20% with respect to Cmax in a same time range in fasting...and/or that a decrease in AUC is less than 10% with respect to AUC in a same time range in fasting...	Plaintiff alleges Sandoz's proposed product performs substantially the same function to obtain the same result, and that any differences are insubstantial, asserting both literal infringement and infringement under the doctrine of equivalents.	¶51	col. 45:5-11
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Identified Points of Contention

- **Evidentiary Questions:** As the complaint does not include the proposed label, a central question will be whether the label for Sandoz's ANDA product actually instructs the specific, meal-dependent timing regimens required by the claims.
- **Scope Questions:** For the '611 patent, the meaning of "same pharmacokinetics" will be a key dispute. For the '769 patent, a key question will be whether Sandoz's product, when administered as instructed, actually meets the quantitative criteria for Cmax (<20% decrease) and AUC (<10% decrease) relative to a fasted state, or if there is a technical mismatch.

V. Key Claim Terms for Construction

- **The Term:** "same pharmacokinetics" (from Claim 1 of the '611 patent).
- **Context and Importance:** This term is the central performance requirement of the claimed method in the '611 patent. Its definition is critical because it sets the standard for determining whether the specified waiting periods successfully "avoid effects of meal consumption" '611 Patent, col. 5:50-54 Practitioners may focus on this term because it is potentially indefinite and its interpretation will dictate the scope of the claim and the evidence required to prove infringement.
- **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The specification states that "'the same pharmacokinetics' means, for example, that the target pharmacokinetics is completely identical or in a range not significantly different" '611 Patent, col. 6:3-6 This language may support an argument that absolute identity is not required.

❑ **Evidence for a Narrower Interpretation:** The specification provides a specific example of what "same pharmacokinetics" means, referencing the common bioequivalence standard where "a least squares mean ratio and its 90% confidence interval are in the range of 0.8 to 1.25" '611 Patent, col. 6:15-19 A defendant may argue this example defines the required scope. The existence of the '769 patent, which recites specific percentage decreases, may also be used to argue that "same pharmacokinetics" implies a distinct, and possibly stricter, standard.

VI. Other Allegations

Indirect Infringement

The complaint explicitly alleges active inducement of infringement under 35 U.S.C. § 271(b) Compl. ¶41 Compl. ¶52 Compl. ¶63 The allegations are based on Sandoz's proposed product labeling, which Plaintiff claims will instruct and encourage physicians, patients, and healthcare providers to administer the generic product in a manner that directly infringes the patented methods.

Willful Infringement

The complaint alleges that Sandoz was aware of the patents-in-suit prior to amending its ANDA to include a Paragraph IV certification Compl. ¶45 Compl. ¶56 Compl. ¶67 It further alleges that Sandoz proceeded "despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Sandoz or so obvious that it should have been known," which tracks the standard for willful infringement Compl. ¶45 Compl. ¶56 Compl. ¶67

VII. Analyst's Conclusion: Key Questions for the Case

❑ A core issue will be one of claim construction: How will the court define "same pharmacokinetics" in the '611 patent? The resolution of this question will determine whether a general similarity to a fasted state is sufficient for infringement, or if strict, quantitative bioequivalence metrics are required.

❑ A key evidentiary question will be one of instructed use: What are the precise administration instructions in Sandoz's ANDA and proposed label? The case will likely turn on whether these instructions direct, or merely permit, administration according to the patented meal-timing methods, which is central to the claim of induced infringement.

❑ A central technical question will be one of functional performance: Does Sandoz's proposed oral suspension, when used as instructed, actually achieve the pharmacokinetic outcomes required by the claims? Specifically, does its absorption profile meet the quantitative C_{max} and AUC criteria of the '769 patent, or is there a functional mismatch that would preclude a finding of literal infringement?

Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 1 of 19 PageID: 1 William P. Deni, Jr. J. Brugh Lower Stephen R. Donat FBT GIBBONS LLP One Gateway Center Newark, New Jersey 07102 (973) 596-

4500 wdeni@fbtgibbons.com jlower@fbtgibbons.com sdonat@fbtgibbons.com Attorneys for Plaintiff Shionogi Inc. UNITED STATES DISTRICT COURT DISTRICT OF NEW JERSEY SHIONOGI INC., Plaintiff, v. SANDOZ INC., Defendant. COMPLAINT FOR PATENT INFRINGEMENT Plaintiff Shionogi Inc. (“Shionogi” or “Plaintiff”), by its undersigned attorneys, brings this action for patent infringement against Defendant Sandoz Inc. (“Sandoz” or “Defendant”), and hereby alleges, on knowledge as to its own actions, and on information and belief as to all other matters, as follows: Civil Action No. _____ 26-7063 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 2 of 19 PageID: 2

NATURE OF THE CASE 1. This is an action for infringement by Defendant, under the Patent Laws of the United States, 35 U.S.C. §§ 1 et seq., of Shionogi’s United States Patent Nos. 12,478,611 (“the ’611 patent”), 12,527,769 (“the ’769 patent”), and 12,569,469 (“the ’469 patent”) (the “Patents-in-Suit”), under the United States Patent Laws, 35 U.S.C. §§ 100 et seq., the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. §§ 301 et seq., and as well as the Declaratory Judgment Act, 28 U.S.C. §§ 2201-2202. 2. This action arises from Defendant’s submission to the United States Food and Drug Administration (“FDA”) of Abbreviated New Drug Application (“ANDA”) No. 220086, seeking approval to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its pharmaceutical products before the expiration of the Patents-in-Suit, which is listed in the FDA’s publication, Approved Drug Products with Therapeutic Equivalence Evaluations, (the FDA’s “Orange Book”) for RADICAVA ORS®. 2 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 3 of 19 PageID: 3

3. There are several related patent infringement actions, involving the same drug RADICAVA ORS® and certain of the same patents, pending in this District. See *In re Radicava ORS*, Case No. 2:25-cv-03326 (D.N.J.) (filed Apr. 25, 2025); *Tanabe Pharma Corp. v. Sandoz Inc.*, Case No. 2:25-cv-16664 (D.N.J.) (filed Oct. 15, 2025); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:25-cv-16677 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Apotex Inc., et al.*, Case No. 2:25-cv-16679 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Lupin Ltd., et al.*, Case No. 2:25-cv-16680 (D.N.J.) (filed Oct. 16, 2025); *Mitsubishi Tanabe Pharma Corp. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Case No. 2:25-cv-18032 (D.N.J.) (filed Nov. 29, 2025); *Tanabe Pharma Corp. v. Azurity Pharmaceuticals, Inc. et al.*, Case No. 2:26-cv-00559 (D.N.J.) (filed Jan. 16, 2026); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:26-cv- 01734 (D.N.J.) (filed Feb. 20, 2025); *Shionogi Inc. v. Lupin Ltd., et al.*, Case No. 2:26-cv-03893 (D.N.J.) (filed Apr. 13, 2026); *Shionogi Inc. v. Lupin Ltd., et al.*, Case No. 2:26-cv-06218 (D.N.J.) (filed May 28, 2026); *Shionogi Inc. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Case No. 2:26-cv- 06619 (D.N.J.) (filed June 5, 2026). 4. As publicly announced on December 22, 2025, Shionogi entered into an agreement to acquire the global RADICAVA ORS® business from Tanabe Pharma Corporation (“TPC”) (formerly known as Mitsubishi Tanabe Pharma Corporation (“MTPC”)). As of April 1, 2026, Shionogi acquired ownership and control of the RADICAVA ORS® assets in the United States, including the NDA for RADICAVA ORS® and its Orange Book-listed patents. 5. Pursuant to this transfer of ownership, TPC intends to file motions pursuant to Federal Rule of Civil Procedure 25(c) to address the transfer of interest and to substitute Shionogi as the appropriate Plaintiff. 3 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 4 of 19 PageID: 4

AMYOTROPHIC LATERAL SCLEROSIS 6. Amyotrophic lateral sclerosis (“ALS”), also known as Lou Gehrig’s disease, is a devastating and fatal neurodegenerative disease that causes motor neurons – nerve cells in the brain and spinal cord – to progressively decay and die. When this

happens, the brain's ability to control muscle movement is progressively lost as the patient loses the ability to speak, eat, move and eventually breathe. The underlying causes of ALS are not known. Once diagnosed with ALS patients, on average, die within 3 to 5 years from when symptoms first appear, although their quality of life deteriorates substantially throughout their few remaining years. However, in patients diagnosed much later, the survival window is even shorter – often within months. There is no cure for ALS.^{1 7}. The care of an ALS patient is burdensome, requiring a team of medical professionals, specialized equipment, and constant attention of a caregiver. Caregivers are often relatives who have forgone their occupations in order to care for the daily activities of the ALS patient. The demands of caregiving for an ALS patient take a toll on the health and finances of their caregivers as well. Of the neurodegenerative diseases, ALS is considered one of the most expensive and burdensome, imposing significant direct and indirect costs on the ALS patient, the caregivers, medical professionals, and the healthcare industry. ⁸. Since 1980, although over one hundred (100+) clinical trials with various compounds have been conducted and published, only four active pharmaceutical ingredients (“APIs”) have been approved by the FDA for the treatment of ALS. RELYVRIO®, a drug using 1 Information in this paragraph is sourced from www.als.org and the National Institute of Health’s “Amyotrophic Lateral Sclerosis fact sheet” (January 2017), available from https://www.ninds.nih.gov/sites/default/files/migrate-documents/ALS_FactSheet-E_508C.pdf and downloaded on September 28, 2025. ⁴ Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 5 of 19 PageID: 5 one of those APIs, was subsequently withdrawn from the market due to a failed clinical study. RADICAVA ORS® is one of the few drug formulations containing one of the remaining three approved APIs for the treatment of ALS. RADICAVA ORS® ⁹. Shionogi is the owner of NDA No. 215446. Through its approval of NDA No. 215446 on May 12, 2022, the FDA granted approval of the first oral suspension formulation containing the edaravone API at a dose concentration of 105 mg/mL, available in the United States and marketed and sold under the trade name RADICAVA ORS®. ¹⁰. TPC, the prior owner of the RADICAVA ORS® business and assets and developer of RADICAVA ORS®, invested hundreds of millions of dollars in research and development demonstrating the efficacy and safety of RADICAVA ORS® for the treatment for ALS. ¹¹. Although there is no cure for ALS, RADICAVA ORS® helps slow the progression (i.e., loss of physical function) of the disease in ALS patients by approximately thirty-three percent (33%) as compared to a placebo over the same six-month period. Unlike the prior RADICAVA® intravenous (“IV”) formulation, RADICAVA ORS® can be administered by the patient or caregivers at the convenience of a home setting, either orally or via a feeding tube, and in only a few minutes. There is no need to transport the patient to a healthcare facility for IV injection of RADICAVA®. ¹². On March 28, 2024, the FDA granted seven years of Orphan Drug Exclusivity for RADICAVA ORS® for the treatment of ALS based upon the FDA’s assessment that RADICAVA ORS® constitutes a major contribution to patient care for people living with ALS because it provides patients with the clinically superior option of an oral suspension route of ⁵ Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 6 of 19 PageID: 6 administration, reducing the burden patients faced with IV administration of the previously approved RADICAVA® formulation. ¹³. Pursuant to 21 U.S.C. § 360cc(a)(2) relating to Orphan Drug Exclusivity, the FDA may not approve another application “for the same drug for the same disease or condition for a person who is not the holder of such approved application or of such license until the expiration of seven years from the date of the approval of the approved application or the issuance of the license.” ¹⁴. ¹⁵. The Orphan Drug Exclusivity for RADICAVA ORS® expires on May 12, 2029. The Patents-in-Suit are listed in the Approved Drug Products With Therapeutic Equivalence Evaluations (“Orange Book”) in connection with NDA No. 215446 for RADICAVA ORS®. THE

PARTIES 16. Shionogi is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 400 Campus Drive, Florham Park, New Jersey 07932. 17. On information and belief, Sandoz is a corporation organized and existing under the laws of the State of Delaware, with a principal place of business at 100 College Road West, Princeton, New Jersey 08540. 18. On information and belief, Sandoz is the holder of ANDA No. 220086, seeking FDA approval to market a generic copy of RADICAVA ORS®. 19. On information and belief, Sandoz is in the business of, inter alia, directly or indirectly, developing, manufacturing, marketing, distributing, selling, offering for sale, and/or importing generic versions of branded pharmaceutical products throughout the world, including the United States and the State of New Jersey. 6 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 7 of 19 PageID: 7 20. On information and belief, Sandoz caused Sandoz's ANDA No. 220086 to be submitted to FDA from this district, and seeks FDA approval of Sandoz's ANDA to market a generic copy of RADICAVA ORS®. 21. On information and belief, after obtaining FDA approval of Sandoz's ANDA No. 220086, Sandoz will act to distribute, offer to sell, and sell the proposed infringing products described in Sandoz's ANDA No. 220086 throughout the United States, including the State of New Jersey, consistent with their earlier actions with respect to other generic versions of branded pharmaceutical products. JURISDICTION AND VENUE 22. Shionogi restates, realleges, and incorporates by reference paragraphs 1–21 as if fully set forth herein. 23. This action arises under the Patent Laws of the United States and the Food and Drug Laws of the United States, Titles 35 and 21, United States Code. 24. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a). 25. This Court may exercise jurisdiction over Sandoz because, on information and belief, Sandoz is in the business of manufacturing, marketing, importing and selling pharmaceutical drug products, including generic drug products. On information and belief, Sandoz directly, or indirectly, develops, manufactures, markets and sells generic drugs throughout the United States and in this judicial district. On information and belief, Sandoz purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Sandoz's generic products. 7 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 8 of 19 PageID: 8 26. On information and belief, as described in Sandoz's notification of ANDA No. 220086 and the certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV), dated April 30, 2026 ("Sandoz's Notice Letter"), Sandoz caused ANDA No. 220086 to be submitted to the FDA to seek FDA approval of ANDA No. 220086 prior to the expiration of the Patents-in-Suit listed in the Orange Book for RADICAVA ORS®. 27. This Court also has personal jurisdiction over Sandoz because Sandoz has committed, aided, abetted and participated and/or will commit, will aid, will abet and/or will participate in the commission of acts of patent infringement, including acts in this judicial district, which have led to foreseeable harm and injury to Shionogi in this judicial district. 28. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Sandoz for reasons stated above and, inter alia, on information and belief, because Sandoz has a regular and established place of business in New Jersey and has committed acts of infringement in New Jersey. THE PATENTS-IN-SUIT 29. Shionogi owns the '611 patent, which was duly and legally issued on November 25, 2025, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '611 patent is attached as Exhibit A. 30. Shionogi owns the '769 patent, which was duly and legally issued on January 20, 2026, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '769 patent is attached as Exhibit B. 31. Shionogi owns the '469 patent, which was duly and legally issued on March 10, 2026, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of

administering same.” A copy of the ’469 patent is attached as Exhibit C. 8 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 9 of 19 PageID: 9 DEFENDANT’S ANDA 32. On information and belief, Sandoz submitted to the FDA, and continues to maintain, its abbreviated ANDA No. 220086 relying upon the RADICAVA ORS® data for FDA approval. 33. On information and belief, Sandoz seeks approval of ANDA No. 220086 for a proposed edaravone suspension, administered at a dose concentration of 105 mg/5 mL. 34. On information and belief, ANDA No. 220086 identifies RADICAVA ORS® as the reference listed drug (“RLD”). 35. On information and belief, Sandoz seeks FDA approval of ANDA No. 220086 to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its proposed edaravone suspension as a proposed generic copy of RADICAVA ORS®. 36. On information and belief, the FDA has not approved ANDA No. 220086. 37. On information and belief, Sandoz sent Shionogi a letter (“Sandoz’s Notice Letter”), purporting to include “Confidential Detailed Factual and Legal Bases for Sandoz’s Paragraph IV Certification that U.S. Patent Nos. 12,478,611; 12,527,769; and 12,569,469 Are Invalid, Unenforceable, and/or Will Not Be Infringed.” Sandoz’s Notice Letter stated that Sandoz had filed ANDA No. 220086, seeking approval to manufacture, use, import, offer to sell and/or sell Sandoz’s generic products before the expiration of the Patents-in-Suit. 9 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 10 of 19 PageID: 10 CLAIMS FOR RELIEF COUNT 1: INFRINGEMENT OF THE ’611 PATENT 38. Shionogi restates, realleges, and incorporates by reference paragraphs 1–37 as if fully set forth herein. 39. On information and belief, Sandoz submitted and/or caused the submission of ANDA No. 220086 to the FDA, seeking approval of Sandoz’s proposed edaravone product in the United States prior to the expiration of the ’611 patent. 40. On information and belief, Sandoz’s proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the ’611 patent, including at least Independent Claim 1 of the ’611 patent. For example, on information and belief, differences, if any, between the features of Sandoz’s proposed edaravone product and the claims of the ’611 patent are insubstantial, and Sandoz’s proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the ’611 patent. 41. On information and belief, Sandoz has infringed one or more claims of the ’611 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Sandoz’s proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the ’611 patent, thereby inducing infringement. 42. Sandoz has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the ’611 patent by submitting ANDA No. 220086 10 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 11 of 19 PageID: 11 with Sandoz’s Notice Letter, seeking approval of Sandoz’s proposed edaravone product prior to the expiration of the ’611 patent listed in the FDA Orange Book. 43. On information and belief, Sandoz intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Sandoz’s proposed edaravone product upon receipt of final FDA approval of ANDA No. 220086. 44. On information and belief, the importation, manufacture, offer to sell, sale, or use of Sandoz’s proposed edaravone product in the United States prior to the expiration of the ’611 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the ’611 patent under 35 U.S.C. §§ 271(a), (b) and/or (c). 45. Upon information and belief, Sandoz was aware of the ’611 patent prior to amending ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Sandoz’s proposed edaravone product and method of using Sandoz’s proposed

edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '611 patent and Sandoz possesses the specific intent to induce and encourage others to infringe that patent. On information and belief, Sandoz amended ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Sandoz or so obvious that it should have been known. 46. Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220086 be a date that is not earlier than the expiration date of the '611 patent or the later expiration of any patent term extension and/or patent 11 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 12 of 19 PageID: 12 term adjustment and any additional periods of exclusivity for the '611 patent to which Shionogi is or becomes entitled. 47. Shionogi is entitled to a declaration that, if Sandoz commercially manufactures, uses, offers for sale, or sells Sandoz's proposed edaravone product within the United States, or imports Sandoz's proposed edaravone product into the United States, or induces or contributes to such activities, Sandoz will infringe one or more claims of the '611 patent under 35 U.S.C. §§ 271(a), (b) and (c). 48. Shionogi will be irreparably harmed if Sandoz is not enjoined from Sandoz's activities infringing the '611 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole. COUNT 2: INFRINGEMENT OF THE '769 PATENT 49. Shionogi restates, realleges, and incorporates by reference paragraphs 1–48 as if fully set forth herein. 50. On information and belief, Sandoz submitted and/or caused the submission of ANDA No. 220086 to the FDA, seeking approval of Sandoz's proposed edaravone product in the United States prior to the expiration of the '769 patent. 51. On information and belief, Sandoz's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '769 patent, including at least Independent Claim 1 of the '769 patent. For example, on information and belief, differences, if any, between the features of Sandoz's proposed edaravone product and the claims of the '769 patent are insubstantial, and Sandoz's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '769 patent. 12 Case 2:26-cv-07063 Document 1 Filed 06/12/26 Page 13 of 19 PageID: 13 52. On information and belief, Sandoz has infringed one or more claims of the '769 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Sandoz's proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the '769 patent, thereby inducing infringement. 53. Sandoz has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '769 patent by submitting ANDA No. 220086 with Sandoz's Notice Letter, seeking approval of Sandoz's proposed edaravone product prior to the expiration of the '769 patent listed in the FDA Orange Book. 54. On information and belief, Sandoz intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Sandoz's proposed edaravone product upon receipt of final FDA approval of ANDA No. 220086. 55. On information and belief, the importation, manufacture, offer to sell, sale, or use of Sandoz's proposed edaravone product in the United States prior to the expiration of the '769 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '769 patent under 35 U.S.C. §§ 271(a), (b) and/or (c). 56. Upon information and belief, Sandoz was aware of the '769 patent prior to amending ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Sandoz's proposed edaravone product and method of using Sandoz's

proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '769 patent and

Sandoz possesses the specific intent to induce and encourage others to infringe that patent. On information and belief, Sandoz amended ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Sandoz or so obvious that it should have been known.

57.

Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220086 be a date that is not earlier than the expiration date of the '769 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the '769 patent to which Shionogi is or becomes entitled.

58.

Shionogi is entitled to a declaration that, if Sandoz commercially manufactures, uses, offers for sale, or sells Sandoz's proposed edaravone product within the United States, or imports Sandoz's proposed edaravone product into the United States, or induces or contributes to such activities, Sandoz will infringe one or more claims of the '769 patent under 35 U.S.C. §§ 271(a), (b) and (c).

59.

Shionogi will be irreparably harmed if Sandoz is not enjoined from Sandoz's activities infringing the '769 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

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COUNT 3: INFRINGEMENT OF THE '469 PATENT

60.

Shionogi restates, realleges, and incorporates by reference paragraphs 1–59 as if fully set forth herein.

61. On information and belief, Sandoz submitted and/or caused the submission of ANDA No. 220086 to the FDA, seeking approval of Sandoz's proposed edaravone product in the United States prior to the expiration of the '469 patent.

62. On information and belief, Sandoz's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '469 patent, including at least Independent Claim 1 of the '469 patent. For example, on information and belief, differences, if any, between the features of Sandoz's proposed edaravone product and the claims of the '469 patent are insubstantial, and Sandoz's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '469 patent.

63. On information and belief, Sandoz has infringed one or more claims of the '469 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Sandoz's proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the '469 patent, thereby inducing infringement.

64.

Sandoz has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '469 patent by submitting ANDA No. 220086 with Sandoz's Notice Letter, seeking approval of Sandoz's proposed edaravone product prior to the expiration of the '469 patent listed in the FDA Orange Book.

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65. On information and belief, Sandoz intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Sandoz's proposed edaravone product upon receipt of final FDA approval of ANDA No. 220086.

66. On information and belief, the importation, manufacture, offer to sell, sale, or use of Sandoz's proposed edaravone product in the United States prior to the expiration of the '469 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '469 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

67.

Upon information and belief, Sandoz was aware of the '469 patent prior to amending ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Sandoz's proposed edaravone product and method of using

Sandoz's proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '469 patent and Sandoz possesses the specific intent to induce and encourage others to infringe that patent. On information and belief, Sandoz amended ANDA No. 220086 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Sandoz or so obvious that it should have been known.

68.

Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220086 be a date that is not earlier than the expiration date of the '469 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the '469 patent to which Shionogi is or becomes entitled.

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69.

Shionogi is entitled to a declaration that, if Sandoz commercially manufactures, uses, offers for sale, or sells Sandoz's proposed edaravone product within the United States, or imports Sandoz's proposed edaravone product into the United States, or induces or contributes to such activities, Sandoz will infringe one or more claims of the '469 patent under 35 U.S.C. §§ 271(a), (b) and (c).

70.

Shionogi will be irreparably harmed if Sandoz is not enjoined from Sandoz's activities infringing the '469 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

PRAYER FOR RELIEF

WHEREFORE, Shionogi respectfully requests the following relief:

A.

A judgment that Defendant has infringed the Patents-in-Suit pursuant to 35 U.S.C. § 271(e)(2) by submitting ANDA No. 220086 to the FDA seeking approval of Defendant's proposed edaravone product prior to the expiration of one or more claims of the Patents-in-Suit;

B. A judgment that the commercial manufacture, use, offer to sell, or sale within the

United States, and/or importation into the United States, of Defendant's proposed edaravone product described in ANDA No. 220086 will infringe, induce, and/or contribute to the infringement of one or more claims of the Patents-in-Suit;

C.

An order issued pursuant to 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220086 be a date not earlier than the expiration date of the Patents-in-Suit, including any patent term extensions and/or patent term adjustments and any additional periods of exclusivity to which Shionogi is or becomes entitled;

D. An order preliminarily and permanently restraining and enjoining Defendant, Defendant's directors, officers, agents, attorneys, affiliates, divisions, successors, and employees,

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and those acting in privity or concert with Defendant, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of any drug product, or the use thereof, claimed in the Patents-in-Suit, before the expiration date of the Patents-in-Suit, including any patent term extension and/or patent term adjustment and any periods of exclusivity, including Orphan Drug Exclusivity, to which Shionogi is or becomes entitled;

E. A declaration that this is an exceptional case and an award to Shionogi of its reasonable expenses, including attorneys' fees pursuant to 35 U.S.C. § 285;

F.

An award to Shionogi of costs incurred in this action; and

G.

Such other and further relief as the Court may deem just and proper.

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Dated: June 11, 2026

Newark, New Jersey

s/ William P. Deni, Jr.

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